

Constitutions and bills of rights

For a government to operate according to the principles of democracy, there must be a framework laid down by law, detailing the extent of its powers and how these are granted by the people. The idea of a written constitution was pioneered by the founders of the United States of America, and similar documents have accompanied the establishment of almost all democratic republics since the 18th century.

Among other things, a constitution describes the structure of government, the process by which it is elected, its period of office and the limits of its legislative power. In addition, it may describe the rights of citizens, or these may be additions or amendments to the constitution, or laid out in a separate bill of rights. There are even some democracies, notably Britain and Australia, that have no formal written constitution, but instead a combination of laws passed by parliament and legal precedents – judges' decisions – which together determine the way that government is constituted.

